

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar. Do not call the department to verify if you should appear or not.** Please read below for the information. **If you would prefer to submit to the Court's tentative ruling without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and no party appears at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 12:00 p.m. the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

September 22, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Phipps vs. Hyundai Motor America 25-01481884	Demurrer to Complaint Defendant Hyundai Motor America ("Defendant") demurs to the fifth cause of action for fraudulent inducement – concealment. Plaintiff Don Phipps ("Plaintiff") opposes the motion. The Demurrer to the fifth cause of action for fraudulent inducement – concealment is SUSTAINED WITH LEAVE TO AMEND. "The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and

	would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal 4th 631, 638.) “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment).” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as “between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) “All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 41 [citing LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337].) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Rattagan v. Uber Technologies,
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Inc. (2024) 17 Cal.5th 1, 41 [citing Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312].)

In Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, the Court of Appeal found that a plaintiff sufficiently stated a cause of action for fraudulent inducement – concealment at the pleading stage. The Court found:

Plaintiffs alleged the above elements of fraud in the SAC. As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.

In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. Considering these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

Nissan also contends plaintiffs did not provide specifics about what Nissan should have disclosed.

But plaintiffs alleged the CVT transmissions were defective in that they caused such problems as hesitation, shaking, jerking, and failure to function. The SAC also alleged Nissan was aware of the defects as a result of premarket testing and consumer complaints that were made both to the National Highway Traffic Safety Administration and to Nissan and its dealers. It is not clear what additional information Nissan believes should have been included. We decline to hold (again in the absence of a more developed argument on this point) that plaintiffs were required to include in the SAC more detailed allegations about the alleged defects in the CVT transmissions. We conclude plaintiffs' fraud claim was adequately pleaded." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844.)

Here, the Court finds that Plaintiff has not sufficiently alleged a contractual relationship with Defendant that would create a duty to disclose. First, the Complaint lacks facts surrounding the purchase of the vehicle, such as whether Plaintiff bought the vehicle directly from Defendant. Plaintiff merely alleges that Plaintiff "purchased a 2022 Hyundai IONIQ 5, vehicle identification number KM8KN4AE7NU070764 ("Subject Vehicle"), which was manufactured and or distributed by Defendant." (Complaint, ¶ 6.) Plaintiff does not allege that Defendant was the seller of the vehicle. In fact, Plaintiff does not indicate who was the seller of the vehicle. For this reason, Plaintiff's allegations are unlike those in Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828 where the plaintiff identified the seller in the complaint. Thus, Plaintiff does not allege a buyer-seller relationship that creates a duty to disclose.

The Court is also persuaded by Defendant's argument that the duty to disclose prior to the sale does not arise from the express warranties

		Defendant gave Plaintiff. The Court notes, however, that the Complaint does not explicitly state that Defendant gave Plaintiff express warranties – although, Plaintiff does allege that “Defendant HYUNDAI provided a warranty that contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc.” (Complaint, ¶ 7.) Still, express warranties are contractual in nature and therefore give rise to a contractual relationship. (See <i>Atkinson v. Elk Corporation of Texas</i> (2006) 142 Cal.App.4th 212, 229 [stating that express warranties are contractual in nature and implied warranties arise by operation of the law].) As Defendant argues, however, that relationship was only formed after the sale of the vehicle. Thus, the transactional relationship between Defendant and Plaintiff did not exist at the time of the sale and therefore Defendant did not owe Plaintiff a duty to disclose prior to the sale of the vehicle. (<i>Yeh v. Superior Court</i> (2023) 95 Cal.App.5th 264, 274 [“California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.”] and 277 [“an express warranty arises out of a sale rather than the underlying contracts.”].) Plaintiff cites <i>Bader v. Johnson & Johnson</i> (2022) 86 Cal.App.5th 1094, 1132, as modified on denial of reh'g (Jan. 23, 2023) in attempts to argue there is a transactional relationship between a manufacturer or consumer. This argument, however, ignores the holding in <i>Bader</i>, which states that in order to find a transactional relationship between a manufacturer and consumer, there must be “direct dealings,” which may be established by “evidence that the manufacturer directly advertised its products to consumers” or evidence that the manufacturer “derived any monetary benefit directly from the consumer’s use of the product.” (<i>Ibid.</i>; see also
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		Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276.) Such allegations are not contained in the operative Complaint. Given the above, the Court finds that Plaintiff has not alleged a cause of action for fraudulent inducement – concealment because Plaintiff has not alleged the requisite transactional relationship that creates a duty to disclose. The Demurrer to the fifth cause of action for fraudulent inducement – concealment is SUSTAINED WITH LEAVE TO AMEND. Defendant to give notice.
102	Edwards vs. City of Dana Point 26- 01563072	Demurrer to Complaint Off Calendar -Notice of Withdrawal filed
103	Liu vs. Tran 25-01487015	1. Demurrer to Second Amended Complaint 2. Case Management Conference Defendant Kimberly Tran (“Kimberly”) demurs to the Second Amended Complaint (SAC) of plaintiff Shu Xia Liu (“Plaintiff”) on the ground that the seventh cause of action for aiding and abetting forgery fails to plead sufficient facts. For the reasons set forth below, the Demurrer is OVERRULED. Kimberly argues that Plaintiff has failed to plead that she had actual knowledge that a tort was being committed. In Casey v. U.S. Bank National Assn. (2005) 127 Cal.App.4th 1138, the court considered the issue of whether the knowledge element of an aiding and abetting claim had been sufficiently alleged. The plaintiffs asserted a claim for aiding and abetting

	breach of fiduciary duty against banks used in a scheme to divert investor funds and alleged that the banks knew of the breaches of fiduciary duty and assisted by allowing the misconduct. The court held that the allegations were insufficient because they failed to establish that the banks had actual knowledge of the primary violation in which they purportedly participated. (127 Cal.App.4th at p. 1148.) The court explained that while the banks may have been suspicious about certain account activities, mere suspicion alone does not give rise to tort liability. (Id. at p. 1151.) The court further noted that, on the other hand, had the plaintiffs alleged that the banks knew that corporate funds were being stolen and knowingly assisted in its laundering, those allegations would suffice to state a claim for aiding and abetting. (Ibid.) In Neilson v. Union Bank of California, N.A. (C.D. Cal. 2003) 290 F.Supp.3d 1101, the court held that the complaint adequately alleged that the defendant banks had actual knowledge of the primary violation, a Ponzi scheme that defrauded investors out of millions of dollars. (Id. at p. 1120.) The Neilson court noted that the complaint alleged that the banks actively participated in the conduct by their utilization of atypical banking procedures to service the accounts, and noted that the necessary knowledge for aiding and abetting could be inferred based on those allegations. (Id. at pp. 1120-1121.) Plaintiff alleges that Kimberly notarized a January 2023 Power of Attorney which states that Plaintiff personally appeared before Kimberly. However, Plaintiff never personally appeared before Kimberly to sign the January 2023 POA and Plaintiff's signature on the January 2023 POA was forged. Plaintiff alleges that Kimberly falsely certified under penalty of perjury that Plaintiff personally appeared before her "despite knowing that Plaintiff did not actually appear and
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even though Kimberly knew or should have known that this POA was intended for unlawful and fraudulent purposes.” (SAC ¶ 86.) “Despite this knowledge, Defendant Kimberly notarized the January 2023 POA, thereby giving it the appearance of authenticity.” (SAC ¶ 87.) Plaintiff alleges that Kimberly’s notarization substantially assisted with the commission of the forgeries and was a substantial factor in causing Plaintiff harm. (SAC ¶ 88.)

Here, Plaintiff alleges that Kimberly knew that Plaintiff did not actually appear before her and still falsely certified under penalty of perjury that Plaintiff did appear before her in the Notary Acknowledgment attached to the January 2023 POA. (SAC ¶ 86.) At the demurrer stage, this allegation is accepted as true and it is irrelevant whether Plaintiff can prove the factual allegations at this stage. Plaintiff’s allegation that Kimberly had actual knowledge that Plaintiff did not appear before her and still falsely certified that Plaintiff had appeared supports an inference of the necessary knowledge for aiding and abetting at this stage. Plaintiff’s allegations, accepted as true, also show that Kimberly gave substantial assistance to the alleged forgery.

Kimberly argues the unqualified allegation regarding knowledge only shows that Kimberly knew the signer was not personally present when she notarized the document, which is not the same as knowledge that the document was forged or that a fraud was being perpetrated. This argument lacks merit. By notarizing the January 2023 POA, Kimberly attested that it was Plaintiff who personally appeared before Kimberly or presented satisfactory evidence to be the person who executed the document. If she did so with knowledge that it was not actually Plaintiff who presented the document, Kimberly had to have known that a fraud

	was taking place and should have refused to notarize the document. Again, this depends on whether Plaintiff can prove her allegations but at the demurrer stage, the allegations are sufficient. Kimberly argues that forgery is a crime and there is no freestanding civil tort of forgery. Kimberly cites no legal authority in support of the argument that forgery cannot be used as the underlying tort of an aiding and abetting claim. Further, forgery is a species of fraud, which is an intentional tort that may underlie an aiding and abetting claim. (See O'Bryan v. Superior Ct. of Los Angeles Cnty. (1941) 18 Cal.2d 490, 497; see also (Saunders v. Superior Court (1994) 27 Cal.App.4th 832, 846.) Thus, this argument is not persuasive. Kimberly argues that the allegations conflict with Exhibit 3 to the SAC, which is a copy of the January 2023 POA. However, she provides no cogent explanation as to any conflict. While, under the January 2023 POA, Kimberly attested that Plaintiff personally appeared before her, this is not inherently in conflict with the allegation that Kimberly knew at the time that the attestation was false and Plaintiff had not personally appeared before her. Kimberly also argues that the SAC is uncertain. However, demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Lickiss v. Fin. Indus. Regulatory Auth. (2012) 208 Cal.App.4th 1125, 1135.) Here, the SAC is not incomprehensible. Thus, this argument is rejected. Considering all the above, Kimberly’s demurrer to the SAC is OVERRULED. Kimberly is ORDERED to file an answer to the SAC within 20 days. Moving party to give notice
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104	Gonzalez vs. Hoekstra 26-01539643	Motion to Strike Complaint is CONTINUED to 09/29/2026 at 10:00 AM. Moving party to give notice.
105	Johnson vs. Daily Bakery, Inc. 26-01562223	1. Motion to Strike Answer 2. Case Management Conference A corporation must be represented by an attorney; it cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. Merco Constr. Eng'rs v Municipal Court (1978) 21 C3d 724, 731; CLD Constr., Inc. v City of San Ramon (2004) 120 CA4th 1141, 1146. A corporation's appearance by an attorney is not, however, an absolute prerequisite to the court's fundamental jurisdiction to hear a case. Instead, a judge should treat a corporation's failure to appear through an attorney as a defect that may be corrected on such terms as are just. 120 CA4th at 1149–1150. The rule requiring representation by an attorney does not deprive a corporation of the capacity to be a party to a lawsuit and is not a fact that is essential to the corporation's cause of action or an element constituting its right of action. 120 CA4th at 1150. As such, recommendation is to Grant the Motion to Strike with leave to amend to allow Defendant Corporation time to acquire legal counsel. RECOMMENDED RULING: Plaintiff Scott Johnson moves this Court to Strike the Answer and enter the default of Defendant Daily Bakery, Inc., a California Corporation. A corporation must be represented by an attorney; it cannot represent itself in court either as a self-

		represented litigant or through an officer or agent who is not an attorney. Merco Constr. Eng'rs v Municipal Court (1978) 21 C3d 724, 731; CLD Constr., Inc. v City of San Ramon (2004) 120 CA4th 1141, 1146. Here, on 5/26/2026 Defendant Daily Bakery Inc filed an Answer to the Complaint in pro per. Therefore, the Motion to Strike the Answer is GRANTED, and Defendant is allowed 60 days leave to amend in order to retain counsel to represent it herein. Clerk to give notice.
106	Wesco Insurance Company vs. Envirotech Environmental Inc. 25-01521870	1. Motion to Strike Answer 2. Case Management Conference Plaintiff Wesco Insurance Company seeks an order striking the Answer to Complaint (filed April 7, 2026) of Defendant Envirotech Environmental Inc. A corporation must be represented by an attorney; it cannot represent itself in court either as a self-represented litigant or through an officer or agent who is not an attorney. Merco Constr. Eng'rs v Municipal Court (1978) 21 C3d 724, 731; CLD Constr., Inc. v City of San Ramon (2004) 120 CA4th 1141, 1146. Here, on 4/7/2026 Defendant Envirotech Environmental Inc. filed an Answer to the Complaint in pro per.

		Therefore, the Motion to Strike the Answer is GRANTED, and Defendant is allowed 60 days leave to amend to retain counsel to represent it herein. Clerk to give notice.
107	Randall vs. Meinecke 25-01481512	Motion for Leave to File Cross-Complaint Defendant The Irvine Company dba Oak Creek Golf Club (“Defendant”) moves for an order granting it leave to file a cross-complaint for express and implied indemnity, contribution, and declaratory relief against defendant California Society for Healthcare Engineering, Inc. Code of Civil Procedure section 428.10(b) provides that a defendant may file a cross-complaint if the cause of action asserted: “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” If such a cross-complaint is not filed at the same time as the defendant’s answer or before the court sets the first trial date, leave to file is required. (Id. § 428.50.) Leave to file may be granted “in the interest of justice at any time during the course of the action.” (Id. § 428.50(c).) The proposed cross-complaint would not add any new parties to the action, the case is still in its early stages, and granting leave to amend would not pose any prejudice to any parties. Thus, the unopposed Motion for Leave to File Cross-Complaint is GRANTED. Defendant is ordered to file and serve the cross-complaint within 10 days. Moving party to give notice

108	Safavi vs. Ghadiri 25-01522424	Motion for Order Preserving Status Quo Plaintiff Maziar Safavi (“Plaintiff”), proceeding in pro per, moves for an order preserving the status quo and prohibiting Defendant from selling, transferring, conveying, mortgaging, refinancing, encumbering, assigning any interests in, or otherwise disposing of the subject property in any manner that could impair, diminish, frustrate, or render ineffective the Court’s ability to provide meaningful relief and enforce any final judgment in this action. Alternatively, if the Court determines that a complete restriction on transfer of the property is not appropriate, Plaintiff respectfully requests that the Court order that all proceeds, net funds, equity withdrawals, refinancing proceeds, or other funds derived from any sale, transfer, refinancing, or other disposition of the property be preserved and maintained in escrow pending final resolution of this action, and that no such funds be withdrawn, transferred, distributed, or otherwise used without further order of the Court. Plaintiff moves pursuant to Code of Civil Procedure section 526 and 527. Defendant did not oppose the motion. The Court notes that Defendant is also represented herself in this case. “An injunction is a writ or order requiring a person to refrain from a particular act.” (Code Civ. Proc., § 525.) “It may be granted by the court in which the action is brought, or by a judge thereof; and when granted by a judge, it may be enforced as an order of the court.” (Code Civ. Proc., § 525.) Pursuant to Code of Civil Procedure section 527: “A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that
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		sufficient grounds exist therefor. No preliminary injunction shall be granted without notice to the opposing party.” (Code Civ. Proc., § 527(a).) “A trial court may grant a preliminary injunction upon a showing that (1) the party seeking the injunction is likely to prevail on the merits at trial, and (2) the interim harm to that party if an injunction is denied is greater than the [interim] harm the [opposing party] is likely to suffer if the ... injunction is issued.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183 [internal quotations omitted].) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183.) The burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (O’Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) “Although preliminary injunctions are generally designed to preserve the status quo pending a determination on the merits of the action, [citation], they are not so limited.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183–1184 [internal quotations and citations omitted].) “A court also has the power to issue a preliminary injunction that mandates an affirmative act that changes the status quo [citation] but should do so only in those extreme cases where the right thereto is clearly established.” (Id., at 1184.)
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	“Although the status quo for these purposes can be easily defined as the last actual peaceable, uncontested status which preceded the pending controversy [citation], determining whether a particular order alters the status quo can be more difficult.” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1184 [internal quotations and citations omitted].) Importantly, a ruling on an application for preliminary injunction is NOT an adjudication on the merits of the ultimate rights in controversy. (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 625 [the “decision [on the preliminary injunction] does not constitute a final adjudication of the ultimate rights in controversy.”].) It merely represents the trial court’s discretionary decision whether defendant should be restrained from exercising a claimed right pending trial. (Cohen v. Board of Supervisors (9185) 40 Cal.3d 277, 286.) Here, the operative Complaint alleged two causes of action: (1) breach of oral contract and (2) promissory and constructive fraud. On 06/09/2026, the Court ruled on Defendant Nasrin Ghadiri’s Motion for Judgment on the Pleadings. As a result of the Court’s ruling on the Motion for Judgment on the Pleadings and Plaintiff’s failure to file an amended complaint, only one cause of action remains at issue: the first cause of action for breach of oral contract. “[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.) “[T]he complaint must indicate on its face whether the contract is written, oral, or implied by
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	conduct.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 458–459.) Express and implied “contract[s] are identical in that they require a meeting of minds or an agreement [citation].” (Aton Center, Inc. v. United Healthcare Ins. Co. (2023) 93 Cal.App.5th 1214, 1230.) “Thus, it is evident that both the express contract and contract implied in fact are founded upon an ascertained agreement or, in other words, are consensual in nature, the substantial difference being in the mode of proof by which they are established.” (Ibid.) Moreover, “[i]n order to plead a contract by its legal effect, plaintiff must allege the substance of its relevant terms.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) “This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Ibid.) In support of his motion, Plaintiff submitted a declaration along with the following exhibits: (1) the written agreement dated May 9, 2021, (2) text messages providing context as to why the May 9, 2021, agreement was created, (3) text messages showing Defendant’s intention to sell the property, and (4) communications related to the appraisal process for the property, photographs showing the upgrades Plaintiff completed on the property (before and after photographs). The moving papers, however, do not include the written agreement dated May 9, 2021, as indicated in the declaration. In the moving papers, Plaintiff also fails to present sufficient evidence establishing an agreement between Plaintiff and Defendant for the upgrades that Plaintiff appears to have performed on the property at issue. In the record presented to the Court in support of this motion, there is no evidence of an agreement between the
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		two parties. For this reason, the Court finds that Plaintiff has not sufficiently established a likelihood that Plaintiff will prevail on his breach of contract cause of action at trial. Importantly, the Court notes that this is not a determination of the merits of Plaintiff's breach of contract cause of action against Defendant and the Court makes no conclusions as to whether there was in fact an agreement between Plaintiff and Defendant. The Court only determines that Plaintiff has provide sufficient evidence of this agreement in this motion and therefore has not met his burden in moving to maintain the status quo. Given the above, the Motion is DENIED. Court clerk to give notice.
109	JB Bostick, LLC vs. Braathen 25-01495911	Motion for Sanctions Plaintiff and Cross-Defendant JB-BOSTICK, LLC ("Plaintiff") moves this Court for an order imposing sanctions against Defendant and Cross-Complainant ARILD BRAATHEN ("Defendant") arising from Defendant's post-litigation destruction of critical physical evidence. [Please see Notice of Motion. (ROA 51).] Initially, the Discovery Act does not expressly prohibit the intentional destruction of relevant evidence ("spoliation") before a lawsuit has been filed or before a discovery request. [See Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 CA4th 1414, 1419.] Notably, Courts have disagreed whether spoliation is sanctionable under the Discovery Act: "Destroying evidence in response to a discovery request after litigation has commenced would surely

	be a misuse of discovery within the meaning of section 2023, as would such destruction in anticipation of a discovery request.” [Cedars-Sinai Med. Ctr. v. Sup.Ct. (Bowyer) (1998) 18 C4th 1, 12, 74 (dictum) (emphasis added); see Williams v. Russ (2008) 167 CA4th 1215, 1227—terminating sanction imposed for allowing destruction of relevant records. Yet, other courts rejected sanctions for spoliation on the ground that the Discovery Act authorizes sanctions only “[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title,” and no discovery method applies to spoliation before a discovery request. [CCP § 2023.030 (emphasis added); New Albertsons, Inc. v. Sup.Ct. (Shanahan) (2008) 168 CA4th 1403, 1430-1431.] Recently, at least with respect to electronically-stored information (ESI), a party has a prelitigation duty to preserve material evidence if litigation is “reasonably foreseeable.” [Victor Valley Union High School Dist. v. Sup.Ct. (John M.M. Doe) (2023) 91 CA5th 1121, 1138, 1142-1144, (citing former text)] In this instance, on 7/9/2025 Plaintiff Bostick filed a complaint against Defendant Braathen for failure to pay for money due under a construction contract. On 9/24/2025 Braathen filed a Cross-Complaint against Bostick indicating Bostick’s work was defective. Plaintiff/Cross-Defendant Bostick now brings this motion for sanctions arguing that Braathen spoiled the evidence herein by remediating the allegedly defective work done by Bostick. Importantly, there is no dispute that the remediation work performed at Braathen’s property addressed
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	the same physical conditions alleged in the Cross-Complaint. Bostick argues once the asphalt paving, underlying subgrade, grading, concrete improvements, and related work were removed and replaced, Plaintiff permanently lost the ability to inspect or test the original conditions giving rise to Defendant's allegations. However, this appears at least partially incorrect because Braathen's attorney, Paul Rolf Jensen declares: 4. On June 3, 2025, I personally attended a meeting and inspection at the Property. Present were Mr. Braathen; Plaintiffs counsel, Monica Slev; a senior representative of JB Bostick who identified himself as the new general manager. 9. During the inspection, Ms. Slev and/or Bostick's representative took photographs of the conditions at the Property. I placed no limitation on what they could photograph or the number of photographs they could take, and I invited them to photograph whatever they wished. I do not know how many photographs they ultimately took. As such, it appears that before Bostick filed its lawsuit, it had the opportunity to inspect its own work at the Braathen work site. Significantly, as of the June 3, 2025 inspection, Braathen had been complaining of the work done at the site since January 2025 (Decl. of Braathen ¶4) and was demanding that Bostick correct its work. By 9/24/2025 Braathen filed its Cross-Complaint. In September/October 2025 the remediation work was completed. [Note: It is unclear how much the inability to "test" the work-site will prejudice Bostick.]
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	Clearly, Braathen was under a duty to preserve the evidence at the work site by the time it filed its own Cross-Complaint and failed to do so. However, two things appear to mitigate the severity of Braathen’s conduct. First, as Braathen argues, Bostick’s lawyer inspected the site without limitations, and was provided follow up information in June 2025. Indeed, by June 18, 2025, Attorney Slev sent an email indicating that her client had “evaluated this matter” and had formed an opinion as to what caused the defect in the work. (Decl. of Jensen¶17, Ex. C.) Second, it does not appear that Ms. Slev (Bostick’s lawyer) ever sent a letter to preserve the work-site or sent a demand to inspect the work-site again once litigation commenced. (See Decl. of Jensen¶¶18, 19.) Then again, perhaps they did not have time to do so because Braathen quickly remediated the work-site after filing its Cross-Complaint. Nevertheless, both sides took photos of the job site. (Decl. of Braathen¶¶33, 52). There were witnesses who knew about the alleged defects and inspected them. As such, both sides have some evidence to establish/disprove the defect. More importantly, it doesn’t appear that Braathen was trying to destroy evidence. Rather, it appears he was simply trying to get his property fixed. Pointedly, he declares, “I ultimately proceeded with remediation because Bostick had not satisfactorily corrected the problems and the Property needed to be repaired, not because I intended to deprive Bostick of evidence.” (De
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		As such, the Motion is denied [without prejudice to allowing the proper jury instruction being provided at trial. For example, CACI 204 if warranted.]
110	Alvarado vs. General Motors LLC 25-01458835	Motion for Attorney Fees Plaintiff Kenny Alvarado (“Plaintiff”) moves for an order awarding attorney fees pursuant to Civil Code section 1794(d), in the amount of \$14,510.50 against defendant General Motors LLC (“Defendant”). The motion is unopposed. Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is ‘to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’ ” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) “Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (Ibid.) This action was filed in February 2025. The parties engaged in streamlined AB 1755 initial disclosures and attended mediation. There was no motion practice and no depositions were taken. Counsel billed a total of 23.9 hours over the span of the litigation (totaling \$11,510.50 in fees), and requests

		\$3,000 to cover additional anticipated time in connection with this motion. The billable rates requested vary from \$210 -\$215 for paralegals, \$425-\$440 for associates and \$525-\$540 for the partners who worked on this case. The Court has reviewed the declaration of Joshua D. Fennell in support of the motion and finds the rates associated with each billing attorney reasonable, given the experience of the attorneys. Similarly, the time expended is also reasonable. Because no opposition or reply was filed, the Court declines to award the requested \$3,000 in anticipated time for reviewing the opposition, preparing the reply and attending the hearing. Accordingly, the motion is GRANTED in the reduced amount of \$11,510.50. Plaintiff to give notice.
111	Sandoval vs. SPS North America, Inc. 26-01568222	Motion to Compel Arbitration x 2 Joinder Defendants SPS North America, Inc. (“SPS”) and Barbara Jean Dear (“Dear”) move to compel plaintiff Julian Sandoval (“Plaintiff”) to arbitrate the claims asserted in this action and to stay this action pending resolution of the arbitration. Defendant Amazon.com Services, LLC (“Amazon”) has filed a separate motion seeking the same relief, as well as a joinder to SPS and Dear’s motion. Amazon’s motion for joinder is GRANTED. A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1281.2.) “The trial court may resolve motions to

	compel arbitration in summary proceedings, in which ‘[t]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.’” (Lane v. Francis Capital Management LLC (2014) 224 Cal.App.4th 676, 683.) SPS and Bear have met their initial burden by attaching a copy of the arbitration agreement bearing Plaintiff’s signature. Plaintiff does not dispute signing the agreement. However, Plaintiff argues the agreement is unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (the “EFAA”) and under an unconscionability analysis. Plaintiff further argues Amazon has no standing to seek to enforce the agreement. The EFAA The EFAA added two sections to the Federal Arbitration Act, 9 U.S.C. §§ 401 and 402. “Section 402, subdivision (a), provides that at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, ‘no pre-dispute arbitration agreement or pre-dispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.’ ” (Kader v. Southern California Medical Center, Inc. (2024) 99 Cal.App.5th 214, 221.) “The EFAA defines a ‘ “sexual harassment dispute” ’ as ‘a dispute relating to conduct that is alleged to constitute sexual
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	harassment under applicable Federal, Tribal, or State law.’ [Citation.]” (Quilala v. Securitas Security Services USA, Inc. (2025) 117 Cal.App.5th 75, 83.) “The EFAA expressly provides that its applicability ‘shall be determined by a court, rather than an arbitrator.’” (Id. at p. 84.) Plaintiff alleges that on June 26, 2025, a security guard at Plaintiff’s worksite verbally assaulted Plaintiff with homophobic insults. Plaintiff reported the assault to Defendant Dear, his manager and supervisor, but Dear did not address his complaint. Plaintiff alleges that Defendants retaliated against him when he reported the conduct. Based on these allegations, Plaintiff contends the EFAA applies and no separately captioned sexual harassment cause of action is required. SPS and Dear argue the EFAA does not apply because, at best, Plaintiff has alleged gender or sexual orientation discrimination based on occasional homophobic slurs and differential treatment and this kind of alleged generalized discrimination does not constitute a sexual assault dispute or sexual harassment dispute. While it appears that no California court has addressed whether the EFAA applies to cases which involve allegations of sexual harassment but do not assert causes of action directly based on that sexual harassment. However, the Court finds the discussion in Doe v. Second Street Corp. (2024) 105 Cal.App.5th 552 instructive. There, the court considered whether the EFAA applied only to the plaintiff’s sexual harassment claims or to the entire action. (Id. at p. 573.) In holding that the EFAA applied to the entire action, the court cited Johnson v. Everyrealm, Inc. (S.D.N.Y. 2023) 657 F.Supp.3d 535. The Johnson court noted that the EFAA applies to make a pre-dispute arbitration agreement invalid and unenforceable “with respect to a case which . . . relates to the . . . sexual harassment dispute.” (657
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F.Supp.3d at p. 558.) Based on that statutory language, the Johnson court held: “This text is clear, unambiguous, and decisive as to the issue here. It keys the scope of the invalidation of the arbitration clause to the entire “case” relating to the sexual harassment dispute. It thus does not limit the invalidation to the claim or claims in which that dispute plays a part.” (Ibid.)

The Second Street court adopted Johnson’s analysis and held: “By its plain language, then, the statute applies to the entire case, not merely to the sexual assault or sexual harassment claims alleged as a part of the case. It is significant, moreover, that the statute does not require that the pendant claims arise out of the sexual assault or sexual harassment dispute; it is enough that the case relates to the sexual assault or sexual harassment claims.” (105 Cal.App.5th at p. 577, emphasis in original.) The Second Street court went on to say that “although not all of plaintiff’s causes of action arise out of her sexual harassment allegations, the ‘case’ unquestionably ‘relates to’ the sexual harassment dispute” (Ibid.)

As the Second Street court noted, the statute does not require that the claims asserted arise out of the alleged sexual assault or sexual harassment dispute. Rather, if the case itself relates to the sexual assault or sexual harassment dispute, the EFAA will apply to the entire case. Here, Plaintiff’s allegations that a security guard at his place of work verbally assaulted him with homophobic insults and slurs describe harassment because of sex under FEHA. (Decloedt v. Radnet Management, Inc. (2026) 121 Cal.App.5th 732, 742 [“we conclude sexual orientation harassment is a form of harassment because of sex under FEHA.”].) Plaintiff’s allegation that he suffered retaliation when he reported the harassment relates to that sexual harassment dispute. Because at least part of this

	action relates to a sexual harassment dispute, the Court finds the arbitration agreement is unenforceable as to the entire case under the EFAA. Notably, the Second Circuit rejected the argument that the EFAA does not apply to retaliation claims because such claims do not fall within the definition of a “sexual harassment dispute.” (Olivieri v. Stifel, Nicolaus & Company, Incorporated (2d Cir. 2024) 112 F.4th 74, 92.) The Olivieri court held the argument was “meritless” under the EFAA’s definition of a “sexual harassment dispute” as “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (Ibid.) As in Olivieri, Plaintiff’s claims of retaliation here relate to conduct that is alleged to constitute sexual harassment. While Olivieri is not binding upon this Court, the Court finds its reasoning to be persuasive. (See also Delo v. Paul Taylor Dance Foundation, Inc. (2023) 685 F.Supp.3d 173, 181 [“there is nothing in the text of the EFAA that suggests its applicability hinges on how a claim is labeled”].) Based on the above, the Court finds that the EFAA applies and renders the arbitration agreement unenforceable. As a result, the Court need not address Amazon’s arguments regarding equitable estoppel, third-party beneficiary standing, alter ego, and agency. The Court also need not address issues of unconscionability. The Court DENIES the Motions to Compel Arbitration. Moving party to give notice
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